

WEST COAST HOLDINGS GROUP, LLC, v SONNACK, et al

25CV47906

DEFENDANT'S DEMURRER

This is an action arising out of the alleged wrongful foreclosure of real property brought by West Coast Holdings Group, LLC ("Plaintiff") against a variety of defendants, including Eileen C. Sonnack, Trustee of the Eileen C. Sonnack Trust ("Sonnack.")

Now before the Court is Sonnack's demurrer to Plaintiff's Complaint.

Defendant's Request for Judicial Notice is **GRANTED**.

The Complaint fails to comply with California Rule of Court 2.112 and is therefore subject to demurrer for uncertainty (Code Civil Procedure § 430.10(f); *Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014 ["failure to comply with rule 2.112 presumably renders a complaint subject to a motion to strike (§ 436), or a special demurrer for uncertainty"].) The Complaint also fails to comply with Code Civ. Proc. Section 425.10(a) which requires that each legal theory be separately stated and contain a "statement of the facts constituting the cause of action, in ordinary and concise language."

The demurrer is **SUSTAINED, with 20 days leave to amend**, on the grounds that it fails to comply with California Rules of Court 2.112 and is therefore fatally uncertain.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant Sonnack to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.